

Welcome to smartXchange.es, an online service that allows you to connect with others to practice both your written and spoken language skills.

By using the smartXchange.es Service, you accept and agree to these Terms of Service. If you do not accept these Terms of Service, you should not register with smartXchange.es or use this Service.

smartXchange.es reserves the right to modify these Terms of Service from time to time without notice. You are responsible for regularly reviewing these Terms of Service so that you will be apprised of any changes. The presence of the Member on smartXchange.es implies full acceptance of all revisions or amendments of these Terms of Service.

1. Registration

1.1 To register with smartXchange.es you must be at least 18 years of age and you must fill in all mandatory fields in the registration form with true and accurate information. However, you can use a Nickname instead of your First Name if you prefer.

1.2 Each user may only register once.

2. Duration of membership

2.1 You should log in at least once every 90 days or your account could be deleted or deactivated. This also applies to members who have temporarily deactivated their profile.

2.2 You should always use an email address that you check on a regular basis. If your email bounces your account will be put on hold or deleted.

2.3 smartXchange.es reserves the right to put on hold or delete your account immediately and without notice if, in its sole judgment, you breach these Terms of Service.

2.4 smartXchange.es reserves the right to put on hold or delete your account immediately and without notice if, in its sole judgment, you engage in behavior we feel is detrimental to other users on the platform.

2.5 smartXchange.es reserves the right to put on hold or delete your account immediately and without notice if, in its sole judgment, you provide misinformation regarding your age and language level ability.

3. Prices

3.1 It's free to register and use the basic services of smartXchange.es.

3.2 smartXchange.es will charge €5 per month or €50 per annum for using its premium services.

3.3 smartXchange.es will charge another agreed upon price for its Enterprise services and users in a Partnership agreement.

4. Restrictions on Use

4.1 The smartXchange.es service is for personal and non-commercial use only. It is not to use for professional or commercial ends. It cannot be used to contact members for other reasons than Language Learning or to promote your own language learning, language exchange, education technology, or social networking service.

4.2 You cannot be rude to other users, even if they have been rude to you.

4.3 You may not make comments or submit any form of content that is or might be illegal, unauthorized, contrary to smartXchange.es's purpose, to the laws and regulations in force or to good moral standards. While smartXchange.es prohibits such contents and materials, you understand and agree that you nonetheless may be exposed to such contents or materials and that you use the smartXchange.es service at your own risk.

4.4 The public fields of your profile (like the "Description" field) cannot contain personal information, such as phone number, email address, Skype Name, website address, etc or sensitive personal information, such as religious beliefs, political opinions, sexual orientation, etc.

4.5 While you are allowed to write personal information in the messages you send to other users, you understand that you do so at your own risk. smartXchange.es strongly recommends that you get to know your potential language partner before exchanging personal information or setting up a meeting.

4.6 smartXchange.es reserves the right to remove any content or account that smartXchange.es determines vulgar, contrary to the spirit of learning languages, infringe or violate any party's intellectual property, other proprietary rights or these Terms of Service, without notification, compensation or refund.

5. Moderation

5.1 You understand and accept that the Site may have some moderation features. For example, a member may be able to report a message they have received by another member if they believe our Terms of Service have been violated.

5.2 You understand and accept that the Site may have some self-moderating features. For example, if you are blocked by too many users, your account could be put on hold or removed automatically.

6. Content, Accessibility and Liability

6.1 smartXchange.es does not warrant or represent that the information provided, in particular such provided by other users, is up-to-date, correct, complete or of quality. The materials in this website are provided "as is" and without warranties of any kind.

6.2 The original version of this Site is in English. The translation of any portion of this Site into another language is for your convenience only and cannot be relied upon. You accept that there can be errors in translations and that parts of the website may not be translated, including these Terms of Service.

6.3 smartXchange.es does not warrant that this Service will be uninterrupted or error-free. Furthermore to be able to make full use of the services offered by smartXchange.es, the user might need to use up-to-date software.

6.4 smartXchange.es reserves the right to moderate the content within the website and users' conduct but is under no obligation to do so.

6.5 You understand that you alone define the boundaries of your privacy and that it is your responsibility to ensure information that could lead to you being harmed is not transmitted through the website. If you give personal information or set up a physical meeting, you do so at your own risk. smartXchange.es strongly recommends you get to know your potential language partner via the website before meeting in person. If you do arrange to meet, choose a public

place (café, pub, restaurant etc.).

6.6 smartXchange.es can supply or third parties may include hypertext links to other websites other than the smartXchange.es site and to Internet sources. As smartXchange.es is unable to supervise these external sites and sources, it cannot be held responsible for the availability of these external sites and sources, and cannot be responsible for their content, advertising, products, services or any other element made available on or from any of these external sites or sources.

6.7 smartXchange.es will not be liable for any damages or injury caused by, including but not limited to, any failure of performance, error, omission, interruption, defect, delay in operation of transmission, data interception, computer virus, or line failure. smartXchange.es will not be liable for any damages, injury or death, including but not limited to, special or consequential damages that result from the use of, or the inability to use, this site.

7. Submissions, Publications and Intellectual property

7.1 You acknowledge that you are responsible for whatever material you submit, and you, not smartXchange.es, have full responsibility for the content, including its legality, reliability, appropriateness, originality, and copyright.

7.2 Any content you submit or publish to smartXchange.es becomes the property of smartXchange.es. This includes but is not limited to ideas, concepts, designs, language phrases, translations. However, personal information will be kept strictly confidential.

7.3 Logos, graphics, photographs, animations, videos and texts featuring on the smartXchange.es site and in the smartXchange.es service are the intellectual property of smartXchange.es or its partners and may not be reproduced, used or represented without the express permission of smartXchange.es or its partners, under threat of legal action.

8. Final Provisions

8.1 If any part of these Terms and Conditions is unlawful, void, or unenforceable, that part will be deemed severable and will not affect the validity and enforceability of any remaining provisions.